

CASE INFORMATION

Date: 08.08.2025

29534/ICA3

ELCOMPONICS HOLDINGS B.V. (The Netherlands) vs/ 1. INVICTUS GMBH (Austria)
2. INVICTUS CABLE GMBH (Austria)

The information below comes from the documents submitted by the parties. Such information is intended to give the arbitral tribunal an overview of this arbitration and is not intended to affect any assessment or decision of the arbitral tribunal.

Team in charge of this Arbitration

Ms Hjördis Birna Hjartardóttir, Counsel	(direct dial number +33 1 49 53 28 83)
Ms Nicole Knebel, Deputy Counsel	(direct dial number +33 1 49 53 28 85)
Ms Pavlína Tomečková, Deputy Counsel	(direct dial number +33 1 49 53 29 50)
Ms Mihaela Tarnovschi, Deputy Counsel	(direct dial number +33 1 49 53 30 29)
Ms Maren Höhn, Assistant	(direct dial number +33 1 49 53 30 27)
Ms Lily Mateo, Assistant	(direct dial number +33 1 49 53 30 99)
Ms Diana Schnitter, Assistant	(direct dial number +33 1 49 53 28 44)
Email	ica3@iccwbo.org

Parties

Claimant

ELCOMPONICS HOLDINGS B.V.
Bavincklaan 7
Amstelveen 1183AT
The Netherlands
Emails:
cs@elcomponics.com
ehbv@elcomponics.com

Respondent 1

INVICTUS GMBH
Industriegebiet 1
7011 Siegendorf
Austria
Tel.: +43 676 83990100
Email: h.reiszner@invictus.eu.com

Paris

33 avenue du Président Wilson
75116 Paris, France
+33 (0)1 49 53 28 28 arb@iccwbo.org

New York

in affiliation with Sicana, Inc.
140 East 45th Street, Suite 14C
New York, NY 10017, USA
+1 646 699 5704 ica9@iccwbo.org

Singapore

in affiliation with SICAS
28 Maxwell Road #02-01, Maxwell Chambers
Suites, Singapore 069120
+65 6983 5580 ica11@iccwbo.org

Hong Kong

Room 102, 1/F., West Wing, Justice Place,
11 Ice House Street, Central, Hong Kong
+852 3954 9504 ica8@iccwbo.org

Sao Paulo

in affiliation with SCIAB LTDA.
rua Surubim, 504, Brooklin Novo
CEP 04571-050, Sao Paulo, Brazil
+55 11 3040 8830 ica10@iccwbo.org

Abu Dhabi

ADGM Square, Level 20, Al Maqam Tower
Al Maryah Island, P.O. Box 111999
Abu Dhabi, United Arab Emirates
+971 56 333 2781 ica12@iccwbo.org

Respondent 2

INVICTUS CABLE GMBH
 Industriegebiet 1
 7011 Siegendorf
 Austria
 Tel.: +43 676 83990100
 Email: h.reiszner@invictus.eu.com

Counsel**Claimant's counsel**

Dr Harish Narasappa
 Mr Sudipta Routh
 Ms Pooja Dadoo
 Ms Malika Nanduru
 Mr Advait Balekundri
 LUTHRA AND LUTHRA LAW OFFICES
 INDIA
 A 20th Floor, Tower 2, Unit A2
 One International Centre (formerly Indiabulls
 Finance Centre)
 Elphinstone Road
 Senapati Bapat Marg, Lower Parel
 400013 Mumbai
 India
 Tel.: +91 9619910305
 Emails:
 srouth@luthra.com
 pdadoo@luthra.com
 mnanduru@luthra.com
 abalekundri@luthra.com

Respondents counsel

Filip Boras
 Markus Schwaiger
 Richard Molesworth
 Paula Kampits
 Stephanie Rohmann
 BAKER MCKENZIE
 RECHTSANWÄLTE LLP & CO KG, ,
 Schottenring 25
 1010 Vienna
 Austria
 Tel: +43 1 24 250 238 / +43 1 24 250 254
 Email: filip.boras@bakermckenzie.com
 markus.schwaiger@bakermckenzie.com
 richard.molesworth@bakermckenzie.com
 paula.kampits@bakermckenzie.com
 stephanie.rohmann@bakermackenzie.com

Other relevant entities

Elcomponics Sales Private Limited (India)
 Muhri & Werschitz

Agreements upon which the Request is based

Shareholders Agreement (SHA)
 dated 24 March 2023

signed by the parties

Arbitration Agreement: Article 10 of the Agreement

10.1. Governing Law

This Agreement and the rights and obligations arising out of or in connection with this Agreement shall be governed by and construed in accordance with English Law, subject to mandatory provisions of Austrian and Indian laws.

10.2. Dispute Resolution

*Both Parties shall, in good faith, attempt to settle amicably any dispute, controversy, difference or Claim including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or in connection with or relating to this Agreement ("**Dispute**"). If the Dispute is not resolved amicably, the Dispute shall be referred to and finally resolved by binding arbitration in accordance with the ICC Rules of the International Chamber of Commerce. The seat of arbitration shall be Paris and the number of arbitrators shall be 1 (one). The language of arbitration shall be English.*

Applicable Law

Article 10.1 of the Agreement

“English Law, subject to mandatory provisions of Austrian and Indian laws”

Language of Arbitration

Article 10.1 of the Agreement

English

Place of Arbitration

Article 10.2 of the Agreement

Paris (France)

Number of Arbitrators

Article 10.2 of the Agreement

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Amount in Dispute

See the attached Financial Table.